

**BEFORE THE
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &
BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC#011982) consisting of EVERGREEN MARINE
CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN
MARINE (HONG KONG) LTD., AND EVERGREEN
MARINE (SINGAPORE) PTE. LTD., *Respondents*.

DOCKET NO. 24-12

MOTION TO EXTEND TIME TO FILE ANSWER

Respondents intend to file a motion to dismiss portions of the complaint for, *inter alia*, failure to state a claim for which relief may be granted (“Partial Motion to Dismiss”). The Federal Maritime Commission’s Rules of Practice and Procedure (“FMC Rules”) are not clear as to whether the filing of the Partial Motion to Dismiss would serve as a responsive pleading to the entirety of the complaint. Therefore, pursuant to Rules 71 and 102 of the FMC’s Rules (46 C.F.R. §§ 502.71 and 502.102), Complainant and Respondents, by and through the undersigned counsel, respectfully move for an extension of time for Respondents to file an answer to the complaint until ten (10) days following a ruling on the Partial Motion to Dismiss.

FMC Rule 12 (46 C.F.R. §502.12), incorporates the Federal Rules of Civil Procedure (“F.R.C.P.”) in instances that are not covered by the FMC’s Rules, if consistent with sound administrative practice. Under F.R.C.P. Rule 12(b), initial pleadings may include a motion for dismissal based on, *inter alia*, failure to state a claim. FMC Rule 62 (46 C.F.R. §502.62) provides that if a motion to dismiss the complaint is filed the answer must be served within ten (10) days of service of any order denying such a motion.

However, both the F.R.C.P. and the FMC Rules are unclear as to whether a Partial Motion to Dismiss extends the time for Respondents to file an answer to that portion of the complaint not addressed by the Partial Motion to Dismiss. The majority of federal courts have determined that a filing deadline for an answer to a complaint is stayed until the resolution of a partial motion to dismiss.

It is unclear from the language of Rule 12(a) whether service of a Rule 12(b) motion directed at only parts of a pleading enlarges the period of time for answering the remaining portions of the pleading. Although some federal courts considering this issue have refused to apply Rule 12(a)'s enlargement of time provision in this context, the weight of the limited authority on this point is to the effect that the filing of a motion that only addresses part of a complaint suspends the time to respond to the entire complaint, not just to the claims that are the subject of the motion. Courts following this majority rule have noted that the minority approach would require duplicative sets of pleadings in the event that the Rule 12(b) motion is denied and cause

confusion over the proper scope of discovery during the motion's pendency. 5B Wright & Miller, § 1346 (3d. edition).

Accordingly, out of an abundance of caution, Complainant and Respondents request that Respondents be granted an extension of time to file the answer on all issues until ten (10) days after a ruling on the Partial Motion to Dismiss.¹

If granted, the requested extension will prevent the inefficiency of Respondents being required to file answers at different times, one now on the claims not subject to the Partial Motion to Dismiss and again later, after the Partial Motion to Dismiss has been decided. If granted, the requested extension would permit Respondents to file one answer, on all issues, ten (10) days after a ruling on the Partial Motion to Dismiss.

In addition, if Respondent's Partial Motion to Dismiss is granted, it will narrow the issues which will need to be addressed in the answer and subsequent filings. The narrowing of the issues will alleviate the necessity of discovery and other filings for a portion of the claims, thereby creating greater efficiencies.

Moreover, since the filing of an answer also triggers other deadlines (initial disclosures, consultation regarding alternative dispute resolution, establishment of a discovery schedule), it would be inefficient to file an answer which implements those

¹ A similar motion was granted by Administrative Law Judge Crovella in 20230930-DK-Butterfly-1, Inc . v. MSC Mediterranean Shipping Co. SA, FMC Dkt # 23-12.

other deadlines if a substantial portion of the efforts may be unnecessary following the issuance of a ruling on the Partial Motion to Dismiss.

A delay of the deadline for filing the answer on that portion of the complaint which is not addressed by the Partial Motion to Dismiss until ten (10) days following a ruling on the Partial Motion to Dismiss would not prejudice the parties but would avoid the inefficiencies described above and allow the case to proceed in a more orderly fashion.

As required by FMC Rule 71 (46 C.F.R. §502.71), counsel for Respondents has conferred with counsel for Complainant, who joins this joint motion for an extension of time to file the answer to ten (10) days following a ruling on the Partial Motion to Dismiss.

WHEREFORE, Complainant and Respondent respectfully request that the deadline for filing Respondent's answer be extended until ten (10) days following the issuance of a ruling on the Partial Motion to Dismiss.

Dated: March 11, 2024

Respectfully submitted,

BETANCOURT, GRECO & EVANS LLC

_____/s/ John Greco
Ronald Betancourt
rbetancourt@bge-law.com
John Greco
jgreco@bge-law.com

Alton J. Evans
aevans@bge-law.com
151 Bodman Place - Suite 200
Red Bank, New Jersey 07701
732-530-4646

*Counsel for Respondents, Evergreen Line Joint
Service Agreement (FMC # 011982) et al.*

HUTH REYNOLDS LLP

/s/ Gregory A. Crapanzano
Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
Gregory A. Crapanzano II
(917) 575-3440
gcrapanzano@huthreynolds.com

*Counsel for Complainant, 20230930-DK-Butterfly-
1, Inc. f/k/a Bed Bath & Beyond, Inc.*

CERTIFICATE OF SERVICE

I certify, under penalty of perjury, that on this 11th day of March, 2024 the foregoing Joint Motion for an Extension of Time to File an Answer was served via electronic mail on:

Karl C. Huth

huth@huthreynolds.com

Matthew J. Reynolds

reynolds@huthreynolds.com

Gregory A. Crapanzano II

gcrapanzano@huthreynolds.com

/s/ John Greco

John Greco